

EXECUTIVE SUMMARY

Lebanon is a parliamentary republic based on the 1943 National Pact, which apportions governmental authority among a Maronite Christian president, a Shia speaker of the Chamber of Deputies (parliament), and a Sunni prime minister. In October 2016 parliament elected Michel Aoun to the presidency, ending more than two years of political deadlock. Observers considered the 2009 parliamentary elections peaceful, fair, and free from regional influences. Parliament postponed subsequent parliamentary elections, granting themselves two extensions, first in 2013 and then again in 2014. Parliament extended its term for a third time when it passed a new electoral law on June 16; it rescheduled parliamentary elections for May 2018.

Civilian authorities maintained control over the armed forces and other security forces, although Palestinian security and militia forces, the designated foreign terrorist organization (FTO) Hizballah, and other extremist elements operated outside the direction or control of government officials.

The most significant human rights issues included arbitrary or unlawful killings, including by government forces and non-state actors; allegations of torture by security forces; violation of citizens' privacy rights; restrictions on freedoms of speech, press, and assembly, including laws criminalizing a number of forms of political expression; lack of governmental action to investigate abuse of refugees; limits on political participation through repeatedly postponed elections; and official corruption.

Although the legal structure provides for prosecution and punishment, enforcement remained a problem, and government officials enjoyed a measure of impunity for human rights abuses.

Section 1.

Respect for the Integrity of the Person, Including Freedom from:

A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR POLITICALLY MOTIVATED KILLINGS

There were allegations that the government and its agents committed arbitrary or unlawful killings during the year. On June 30, the Lebanese Armed Forces (LAF) raided areas around Aarsal in search of suspected Islamic State of Iraq and Syria (ISIS) and Fatah al-Sham (JFS) terrorists who had seized the area in 2014. After five terrorists detonated suicide bombs, killing a young girl and wounding seven LAF soldiers, soldiers detained more than 350 Syrian men, four of whom died in custody. Shortly after the incident, initial statements from the LAF asserted that the men had died of natural causes, pending the completion of its investigation. Family members of three of the men released photographs of their bodies, returned by the LAF, which they alleged showed signs of torture. On July 25, media outlets reported that the LAF forensic report found the four died of natural causes, exacerbated by the environment, and on July 27, newspapers reported that LAF Commander General Joseph Awn said that some detainees had suffered “some mistreatment.” Although the LAF investigation concluded in July, authorities never publicly released the final report.

Islamist extremist groups committed numerous unlawful killings.

The country was affected economically and socially by the Syrian conflict, which generated a massive humanitarian refugee crisis and strained the country's already weak infrastructure and ability to deliver social services. The continued spillover of violence led to the unlawful deprivation of life by nonstate actors, including gangs and terrorist organizations, particularly in Aarsal.

In 2014 clashes erupted between army personnel and Islamist militants aligned with ISIS and JFS when the militants crossed from Syria into Lebanon in Aarsal. Nineteen LAF members and 40 to 45 Syrians and Lebanese died; 90 to 100 individuals were injured. Islamist militants captured 29 LAF and Internal Security Forces (ISF) members, of whom they executed 14 and released six. On September 6, the LAF announced that DNA tests of human remains it recovered following military operations against ISIS proved them to be the bodies of the nine remaining LAF soldiers.

Despite the presence of Lebanese and UN security forces, Hizballah retained significant influence over parts of the country. The government made some progress toward disbanding and disarming armed nonstate militia groups. In August the LAF conducted military operations ousting ISIS militants occupying areas along the country's eastern border with Syria. Neither the LAF nor the ISF controlled Palestinian camps in the country (except Nahr el-Bared camp). Joint committees of Palestinian factions that acted as police inside the camp managed security, and there was coordination with the government and the LAF.

On July 21, prosecution for the Special Tribunal for Lebanon (STL) referred a confidential indictment to the STL's pretrial judge for the 2005 killings of former prime minister Rafik Hariri and 22 other individuals. The details of the potential indictment remain confidential until the STL decides whether it can hear a case on the new charges.

B. DISAPPEARANCE

There were no confirmed reports of disappearances by or on behalf of government authorities.

Syrian opposition activists asserted that Syrian agents in Lebanon targeted them. They claimed they had to operate clandestinely for their protection.

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

On September 19, parliament approved a revised law against torture designed to better align the country's antitorture legislation with the UN Convention Against Torture. The new law was intended to prohibit all forms of torture or cruel, inhuman, or degrading punishment. Some nongovernmental organizations (NGOs) argued that there were reports security officials mistreated detainees. The penal code prohibits using acts of violence to obtain a confession or information about a crime, but the judiciary rarely investigated or prosecuted allegations of such acts. According to domestic and international human rights groups, security forces abused detainees to obtain confessions or encourage suspects to implicate other individuals.

Human rights organizations reported that incidents of abuse occurred in certain police stations. The government denied the systematic use of torture, although authorities acknowledged violent abuse sometimes occurred during preliminary investigations at police stations or military installations where officials interrogated suspects without an attorney present. Such abuse reportedly occurred in multiple units despite national laws prohibiting judges from accepting confessions extracted under duress.

There were reports that the ISF threatened and mistreated drug users, persons involved in prostitution, and LGBTI persons in their custody. Human rights organizations and legal experts, however, reported some improvements in detainee treatment during the year.

Former prisoners, detainees, and local human rights groups reported abuse that included physical and psychological pressure, forced HIV testing, and threats of prolonged detention among others.

The UN Interim Force in Lebanon (UNIFIL) received an allegation of sexual exploitation against one of its civilian personnel in March. The incident was alleged to have taken place in 2014 or 2015. As of October 11, the investigation was pending, and the United Nations had taken the interim step of placing the staff member on administrative leave without pay.

The UN Disengagement Observer Force received an allegation of sexual exploitation against one of its military personnel in October. The incident was alleged to have taken place in September in Lebanon. As of October 11, the investigation was pending, and the United Nations had taken the interim step of suspending payments to the troop-contributing country.

Prison and Detention Center Conditions

Prison and detention center conditions were often overcrowded, and prisoners sometimes lacked access to basic sanitation. As was true for most buildings in the country, prison facilities were inadequately equipped for persons with disabilities.

Physical Conditions: As of August there were approximately 6,300 prisoners and detainees, including pretrial detainees and remanded prisoners, in facilities built to

hold 3,500 inmates. Roumieh Prison, with a designed capacity of 1,500, held approximately 3,250 persons. Authorities often held pretrial detainees together with convicted prisoners. ISF statistics indicated that more than 1,000 minors and approximately 300 women were incarcerated.

Conditions in overcrowded prisons were poor. According to a government official, most prisons lacked adequate sanitation, ventilation, and lighting, and temperatures were not regulated consistently. Prisoners lacked consistent access to potable water (as did many Lebanese citizens). Roumieh prisoners often slept 10 in a room originally built to accommodate two prisoners. Although better medical equipment and training were available at Roumieh, basic medical care suffered from inadequate staffing, poor working conditions, and extremely overcrowded medical facilities. Some NGOs complained of authorities' negligence and failure to provide appropriate medical care to prisoners, which may have contributed to some deaths. The ISF reported that none died of police abuse and that there were no cases of rape in prisons during the year.

There were reports of female prisoners exchanging sex for "favors" or for items such as cigarettes, food, more comfortable conditions in their cells, or a more favorable handling of their cases.

Administration: The ISF's Committee to Monitor Against the Use of Torture and Other Inhuman Practices in Prisons and Detention Centers conducted 73 prison visits as of August. Parliament's Human Rights Committee was responsible for monitoring the Ministry of Defense detention center. The minister of interior assigned a general-rank official as the commander of the inspection unit and a major-rank official as the commander of the human rights unit. The units were instructed to investigate every complaint. After completing an investigation, authorities transferred the case to the inspector general for action in the case of a disciplinary act or to a military investigative judge for additional investigation. If

investigators found physical abuse, the military investigator assigned a medical team to confirm the abuse and the judge ruled at the conclusion of the review. As of August there were 14 complaints reported to the ISF committee. According to the ISF Human Rights Unit, the ISF took disciplinary action against those it found responsible, including dismissals, but it did not publicize this action.

Families of prisoners normally contacted the Ministry of Interior to report complaints, although prison directors could also initiate investigations. According to a government official, prison directors often protected officers under investigation. Prisoners and detainees also have the ability to report abuse directly to the ISF Human Rights Unit.

Independent Monitoring: The government permitted independent monitoring of prison and detention conditions by local and international human rights groups and the International Committee of the Red Cross (ICRC), and such monitoring took place. The ICRC regularly visited 23 prisons and detention centers.

Nongovernmental entities, such as the FTO Hizballah and Palestinian nonstate militias, also reportedly operated unofficial detention facilities, but no information about these facilities was available.

Improvements: The ISF Human Rights Unit received formal approval for a new set of standard operating procedures focused on protecting the human rights of prisoners. According to the ISF Human Rights Unit, as of August 1, minors were held in separate cells in all detention centers. The central prison in Roumieh constructed a new kitchen facility and conducted plumbing renovations to improve sanitary conditions. ISF officers assigned to the prison also received updated training on the appropriate use of four-point restraints to improve the safety and security of prisoners during transportation.

D. ARBITRARY ARREST OR DETENTION

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his/her arrest or detention in court, and the government generally observed these requirements. The law requires judicial warrants before arrests except in cases of active pursuit. Nonetheless, the government arbitrarily arrested and detained persons.

ROLE OF THE POLICE AND SECURITY APPARATUS

Civilian authorities maintained effective control over the ISF and the Directorate of General Security (DGS), and the government has effective mechanisms to investigate and punish abuse. The ISF, under the Ministry of Interior, is responsible for law enforcement. The General Directorate for State Security, reporting to the prime minister, and the DGS, under the Ministry of Interior, are responsible for border control. The LAF, under the Ministry of Defense, is responsible for external security but also may arrest and detain suspects on national security grounds. All of these organizations collected information on groups deemed possible threats to state security.

Each security apparatus has its own internal mechanisms to investigate cases of abuse and misconduct. The ISF code of conduct defines the obligations of ISF members and the legal and ethical standards by which they must abide in performing their duties. Various security forces underwent training on the code. Government security force officials, however, reportedly enjoyed a measure of implicit impunity due to the lack of enforcement of the code of conduct and scarcity of publicly available information on the outcome of prosecutions. There are internal complaint mechanisms within the security forces.

In accordance with UN Security Resolutions 425 and 426, UNIFIL was established in 1978 to confirm the Israeli withdrawal from the southern region of the country, restore peace and security, and assist the government in restoring its authority over its territory. UN Security Resolution 1701 stated UNIFIL was to monitor cessation of hostilities between Israel and Hizballah after their 2006 war, accompany the LAF in deploying to the South Litani Sector, assist in providing humanitarian access to civilians, or the safe return of displaced, as well as assist the government in securing its borders.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

The law generally requires a warrant for arrest and provides the right to a medical examination and referral to a prosecutor within 48 hours of arrest. If authorities hold a detainee longer than 48 hours without formal charges, the arrest is considered arbitrary, and authorities must release the detainee or request a formal extension. The code of criminal procedures provides that a person may be held in police custody for investigation for 48 hours, unless the investigation requires additional time, in which case the period of custody may be renewed for another 48 hours.

By law bail is available in all cases regardless of the charges, although the amounts required may be prohibitively high.

The code of criminal procedures states that from the moment of arrest a suspect or the subject of a complaint has the right to contact a member of his family, his employer, an advocate of his choosing, an acquaintance, or an interpreter, and undergo a medical examination on the approval of the general prosecutor. It does not mention, however, whether a lawyer may attend preliminary questioning with the judicial police. In practical terms the lawyer may not attend the preliminary

questioning with judicial police. Under the framework of the law, it is possible to hold a suspect at a police station for hours before allowing the individual to exercise the right to contact an attorney. If the suspect lacks the resources to obtain legal counsel, authorities must provide free legal aid. The law does not, however, require the judicial police to inform an individual who lacks legal counsel that one may be assigned through the Bar Association, whether in Beirut or Tripoli.

The law does not require authorities to inform individuals they have the right to remain silent. Many provisions of the law simply state that if the individuals being questioned refuse to make a statement or remain silent, this should be recorded and that the detainees may not be “coerced to speak or to undergo questioning, on pain of nullity of their statements.”

Excluded from this protection are suspects accused of homicide, drug crimes, endangerment of state security, violent crimes, crimes involving terrorism, and those with a previous criminal conviction.

Officials responsible for prolonged arrest may be prosecuted on charges of depriving personal freedom, but authorities rarely filed charges and did so without consequence. The law requires authorities to inform detainees of the charges filed against them. A suspect caught in the act of committing a crime must be referred to an examining judge, who decides whether to issue an indictment or order the release of the suspect.

Authorities failed to observe many provisions of the law, and government security forces, as well as extralegal armed groups such as Hizballah, continued the practice of extrajudicial arrest and detention, including incommunicado detention. Additionally, the law permits military intelligence personnel to make arrests without

warrants in cases involving military personnel or involving civilians suspected of espionage, treason, or weapons possession.

Arbitrary Arrest: According to local NGOs, cases of arbitrary detention occurred, but most victims chose not to report violations against them to the authorities. NGOs reported that most cases involved vulnerable groups such as refugees, migrant workers, drug users, and LGBTI individuals. Civil society groups reported authorities frequently detained foreign nationals arbitrarily.

Pretrial Detention: The law states the period of detention for a misdemeanor may not exceed two months. Officials may extend this period by a maximum of two additional months. The initial period of custody may not exceed six months for a felony, but the detention may be renewed. Pretrial detention periods for felonies may last for months or years as a result of due process backlogs.

Pretrial detention periods were often lengthy as a result of delays in due process. As of August ISF reported 4,097 of the 6,330 persons in prison were in pretrial detention. The Office of the UN High Commissioner for Human Rights expressed concern about arbitrary pretrial detention without access to legal representation and refused to support construction of prisons until authorities resolved the serious problem of arbitrary pretrial detention. Some pretrial detention periods equaled or exceeded the maximum sentence for the alleged crime. According to a study by the Lebanese Center for Human Rights, detainees spent one year on average in pretrial detention prior to sentencing. Individuals accused of murder spent on average 3.5 years in pretrial detention. Many Salafist prisoners remained in prolonged pretrial detention, including detainees from the Nahr el-Bared fighting in 2007.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: Lawyers infrequently challenged the lawfulness of their client's detention, despite the

defendant's rights to do so. As a result the defense mainly focused on presenting evidence and arguments to challenge the prosecutor's verdict.

E. DENIAL OF FAIR PUBLIC TRIAL

Although the constitution provides for an independent judiciary, authorities subjected the judiciary to political pressure, particularly in the appointment of key prosecutors and investigating magistrates. Influential politicians and intelligence officers intervened at times to protect supporters from prosecution. Persons involved in routine civil and criminal proceedings sometimes solicited the assistance of prominent individuals to influence the outcome of their cases.

TRIAL PROCEDURES

The constitution and the law provide for the right to a fair and public trial, and an independent judiciary generally enforced this right.

Defendants are presumed innocent until proven guilty. Trials are generally public, but judges have the discretion to order a closed court session. Defendants have the right to be present at trial, to consult with an attorney in a timely manner, and to question witnesses against them. Defendants may present witnesses and evidence. Defendants have the right to free interpretation; however, interpreters were rarely available. Defendants have the right not to be compelled to testify or confess guilt; they have the right of appeal.

The Military Court has jurisdiction over cases involving the military as well as those involving civilians accused of espionage, treason, weapons possession, and draft evasion. Civilians may be tried on security charges, and military personnel may be tried on civil charges. The Military Court has a permanent tribunal and a cassation tribunal. The latter hears appeals from the former. A civilian judge

chairs the higher court. Defendants on trial under the military tribunal have the same procedural rights as defendants in ordinary courts. Human rights groups expressed concerns about the trial of civilians in military courts, the extent to which they were afforded full due process, and the lack of review of verdicts by ordinary courts.

Because of an agreement struck decades ago between the Lebanese government and late Palestinian leader Yasser Arafat, Lebanese security forces do not enter Palestinian camps (except Nahr el-Bared camp); they remain outside the entrance and check vehicles and identification. As a result the camps, particularly Ain el-Helweh, had the reputation of being lawless enclaves, and authorities stated that foreign and local jihadists found refuge within them.

The Palestinian factions that theoretically provided security in the camps often fought each other for control, and these groups generally controlled the justice systems in the camps. Governance varied greatly, with some camps under the control of joint Palestinian security forces, while local militia strongmen heavily influenced others. Essentially, Palestinian groups in refugee camps operated an autonomous and arbitrary system of justice outside the control of the state. For example, local popular committees in the camps attempted to resolve disputes through informal mediation methods but occasionally transferred those accused of more serious offenses (for example, murder and terrorism) to state authorities for trial.

POLITICAL PRISONERS AND DETAINEES

There were no reports of political prisoners or detainees.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

There is an independent judiciary in civil matters, but plaintiffs seldom submitted civil lawsuits seeking damages for government human rights violations to it. During the year there were no examples of a civil court awarding a person compensation for such violations. There is no regional mechanism to which to appeal adverse domestic human rights decisions. The country has reservations on individual complaints under any human rights treaty, body, or special procedure. Appeals to international human rights bodies are accessible only after exhausting all domestic remedies.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

The law prohibits such actions, but authorities frequently interfered with the privacy of persons regarded as enemies of the government. There were reports security services monitored private email and other digital correspondence.

The law provides for the interception of telephone calls with prior authorization from the prime minister at the request of the minister of interior or minister of defense.

Militias and non-Lebanese forces operating outside the area of central government authority also frequently violated citizens' privacy rights. Various nonstate actors, such as Hizballah, used informer networks and telephone monitoring to obtain information regarding their perceived adversaries.

LAF forces raiding Syrian refugee settlements caused destruction of physical property while making arrests and in some cases forced refugees to move their informal settlements away from LAF positions.

Personal status for civil matters was legally handled by religious courts, which applied religious laws of the various confessions and occasionally interfered in family matters such as child custody in the case of divorce. Refugee birth registrations require families to register birth certificates with Lebanese ministries, which remained inaccessible because the ministries require proof of legal residence and legal marriage.

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF SPEECH AND PRESS

The constitution provides for freedom of expression, including for the press, and stipulates that restrictions may be imposed only under exceptional circumstances. The government generally respected this right, but there were some restrictions, particularly regarding political and social issues.

Freedom of Expression: Individuals were free to criticize the government but legally prohibited from discussing the dignity of the president and from insulting him or the president of a foreign country. In such cases the attorney general can automatically refer the publication in question to the judiciary.

Press and Media Freedom: The print media in the country is regulated by the 1962 Publications Law. The law holds journalists responsible for erroneous or false news; threats or blackmail; insult, defamation, and contempt; causing prejudice to the Lebanese president's dignity; insulting the president or the president of a foreign country; instigation to commit a crime through a publication; and sectarian provocation. The Publications Law contains detailed rules governing the activities of printing houses, press media, libraries, publishing houses, and distribution companies. It also establishes media institutions such as the Press Syndicate. The

law provides rules and conditions for becoming a journalist and for obtaining licenses for new publications. It also prohibits the press from publishing blasphemous content of the country's officially recognized religions or content that may provoke the sectarian feuds.

There was uncertainty regarding which legal framework is applicable to online news sites in the country. There are no specific laws regulating online speech in the country. The penal code, however, contains a number of speech offenses. Several articles in the penal code criminalize defamation of public officials, public entities, and individuals. Moreover, the military justice code prohibits defamation of the army. Accordingly, individuals, journalists, and bloggers may be prosecuted for what they express online.

The law governing audiovisual media bans live broadcasts of unauthorized political gatherings and certain religious events and prohibits the broadcast of "any matter of commentary seeking to affect directly or indirectly the well-being of the nation's economy and finances, material that is propagandistic and promotional, or promotes a relationship with Israel." Media outlets must receive a license from the Council of Ministers, based on a recommendation by the minister of information, to broadcast direct and indirect political news and programs. The law prohibits broadcasting programs that seek to affect the general system, harm the state or its relations with Arab and other foreign countries, or have an effect on the well-being of such states. The law also prohibits the broadcast of programs that seek to harm public morals, ignite sectarian strife, or insult religious beliefs.

Violence and Harassment: Broadcast journalists continued to suffer from intimidation and harassment. Political friction and tension led some outlets to fear entering certain "politically classified" areas to report without removing brandings and logos that referenced the outlets. Outlets that sought to report in areas

classified as Hizballah areas must obtain special permission from Hizballah's media arm.

On February 13, hundreds of protesters surrounded the building of al-Jadeed TV following a show they believed offended Amal Movement leader and Speaker of Parliament Nabih Berri. Protesters threw stones at the building and attempted to storm it. A cameraman and an employee were slightly injured. The incident was followed by blocking the television station's transmission in several areas of the southern suburbs of Beirut. The channel remained off the air until November 25.

On May 11, two unidentified persons burned al-Jadeed TV vehicles in the parking lot of the television station. Authorities opened an investigation into the incident; however, no one had been arrested or charged by year's end.

Censorship or Content Restrictions: The law permits, and authorities selectively used, prior censorship of pornographic material, political opinion, and religious material considered a threat to national security or offensive to the dignity of the head of state or foreign leaders. The DGS may review and censor all foreign newspapers, magazines, and books to determine admissibility into the country, but these reviews are mostly for explicit, pornographic content. Some journalists reported that political violence and extralegal intimidation led to self-censorship among journalists.

The law includes guidelines regarding materials deemed unsuitable for publication in a book, newspaper, or magazine. Any violation of the guidelines could result in the author's imprisonment or a fine.

Authors could publish books without prior permission from the DGS, but if the book contained material that violated the law, the DGS could legally confiscate the book and put the author on trial. In some cases authorities might deem the

offending material a threat to national security. Authorities did not take such offenses to trial based on the publication law, but rather on the basis of criminal law or other statutes. Publishing a book without prior approval that contained unauthorized material could put the author at risk of a prison sentence, fine, and confiscation of the published materials.

Authorities from any of the recognized religious groups could request the DGS to ban a book. The government could prosecute offending journalists and publications in the publications court. According to one NGO, as of December the government opened more than 30 cases in the publications court during the year.

Libel/Slander Laws: The 1991 security agreement between the Lebanese and Syrian governments, still in effect at year's end, contained a provision prohibiting the publication of any information deemed harmful to the security of either state.

On April 5, the Court of Publication fined journalists Thaer Ghandour, Ibrahim al-Amin, and Hasan Sabra over allegations of defamation and slander. On November 10, the Justice Ministry asked the state prosecutor general to launch an investigation into comments made by two Saudi commentators who defamed and slandered Lebanese state officials on a local television talk show.

Nongovernmental Impact: Radical Islamist groups sometimes sought to inhibit freedom of the press through coercion and threats of violence.

INTERNET FREEDOM

The law does not restrict access to the internet. There was, however, a perception among the general public that the government monitored email and social media activity. The government reportedly censored some websites to block online gambling, pornography, religiously provocative material, extremist forums,

and Israeli websites, but there were no verified reports the government systematically attempted to collect personally identifiable information via the internet.

The ISF's Cyber Crimes Unit and other state agencies summoned journalists, bloggers, and activists to question them about social media and blog posts, especially when they criticized political figures.

Restrictions on freedom of speech concerning government officials applied to social media communications, which authorities considered a form of publication rather than private correspondence. There were also reports of political groups intimidating individuals and activists for their online posts.

In March authorities arrested and detained an activist over Facebook posts criticizing senior officials, including the president. He was interrogated without a lawyer and released on bail after nine days of detention. On August 17, the DGS detained another activist due to his social media posts, which criticized Hizballah's involvement in Syria, along with the Syrian and Iranian regimes and their political allies in Lebanon. After his release, the activist said authorities harassed and threatened him regarding further criticism of Hizballah and its allies.

Internet access was available and widely used by the public. According to the Internet World Statistics, internet penetration was 76 percent as of March.

On April 4, seven administrators of a Facebook page called "Granada City" appeared in court in Bouira on charges stemming from a post in January calling for a general strike. The charges against them were dropped in May.

For a second year, the government blocked access to social media sites, including Facebook and Twitter, for several days during nationwide high school

exams. The decision was in response to previous leaks of exam results, which were posted on social media.

According to the International Telecommunication Union, 43 percent of the population used the internet in 2016.

ACADEMIC FREEDOM AND CULTURAL EVENTS

There are no government restrictions specific to academic freedom, but libel and slander laws apply.

The majority of private universities enjoyed freedom of expression, and students were free to hold student elections and organize cultural, social, and political activities.

During the year the government censored and barred the screening of at least two films. The DGS reviewed all films and plays, and there were complaints the DGS's decision-making process lacked transparency and was influenced by the opinions of religious institutions and political groups. Cultural figures and those involved in the arts practiced self-censorship to avoid being detained or refused freedom of movement.

In May the Ministry of Economy banned the movie *Wonder Woman* because the lead actress was Israeli. A group called Campaign to Boycott Supporters of Israel-Lebanon prompted the ban.

On September 10, DGS officials interrogated director Ziad Douweiry at Beirut International Airport as he returned from the Venice Film Festival. At the airport the DGS confiscated Douweiry's Lebanese and French passports and requested that he appear in military court the following day for further questioning.

Reportedly, Douwiery filmed some scenes of one of his movies in Israel. On September 11, authorities released Douweiry and filed no charges against him.

B. FREEDOM OF PEACEFUL ASSEMBLY AND ASSOCIATION

The constitution provides for the freedoms of peaceful assembly and association, and the government generally respected these freedoms.

FREEDOM OF PEACEFUL ASSEMBLY

The constitution provides for the freedom of peaceful assembly with some conditions established by law. Organizers are required to obtain a permit from the Interior Ministry three days prior to any demonstration. In previous years the ministry sometimes did not grant permits to groups that opposed government positions, but there were no known examples of this restriction being applied during the year.

Security forces occasionally intervened to disperse demonstrations, usually when clashes broke out between opposing protesters.

On March 19, protesters gathered in downtown Beirut to denounce proposed tax hikes being considered in parliament to fund a wage increase for public-sector employees. On September 26-28, another group of protesters organized in Beirut and Baabda to denounce the annulment of these tax hikes.

On June 16, military personnel beat and kicked protesters in downtown Beirut who demonstrated against a third extension of parliament's term, according to Human Rights Watch. The military investigation of involved personnel continued at year's end.

On April 24, a court acquitted four persons and convicted one minor in relation to large protests over waste management issues in 2015.

Several LGBTI-friendly NGOs canceled events during the year due to pressure on their venues from religious groups.

FREEDOM OF ASSOCIATION

The constitution provides for freedom of association with some conditions established by law, and the government generally respected the law.

No prior authorization is required to form an association, but the Ministry of Interior must be notified for it to be recognized as legal, and the ministry must verify that the organization respects public order, public morals, and state security. The ministry sometimes imposed additional, inconsistent restrictions and requirements and withheld approval. In some cases the ministry sent notification of formation papers to the security forces to initiate inquiries about an organization's founding members. Organizations must invite ministry representatives to any general assembly where members vote on bylaws, amendments, or positions on the board of directors. The ministry must then validate the vote or election. Failure to do so may result in the dissolution of the organization by a decree issued by the Council of Ministers.

The cabinet must license all political parties (see section 3).

Independent NGOs in areas under Hizballah's sway faced harassment and intimidation, including social, political, and financial pressures. Hizballah reportedly paid youth who worked in "unacceptable" NGOs to leave the groups.

C. FREEDOM OF RELIGION

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT, INTERNALLY DISPLACED PERSONS, PROTECTION OF REFUGEES, AND STATELESS PERSONS

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights for citizens but placed extensive limitations on the rights of Palestinian refugees and Syrian, Iraqi, and other refugee populations.

As of June 30, the Office of the UN High Commissioner for Refugees (UNHCR) registered more than one million Syrian refugees, 18,708 Iraqis, more than 2,200 Sudanese refugees, and refugees of other nationalities in the country. The UN Relief and Works Agency (UNRWA) provided assistance to Palestinian refugees registered in the country. While approximately 458,000 Palestinians registered as refugees with UNRWA in Lebanon, the estimated number actually living in Lebanon was between 260,000 and 280,000. UNRWA also provided services to Palestinian refugees from Syria (PRS). PRS in Lebanon numbered almost 33,000, according to a UNRWA count completed on October 2. According to a census carried out during the year jointly by the Lebanese and Palestinian Statistics Administrations, however, there were approximately 174,000 Palestinians living in Lebanon.

Abuse of Migrants, Refugees, and Stateless Persons: Multiple NGOs and UNHCR shared reports of sexual harassment and exploitation of refugees by government, employers, and landlords, including paying workers below the minimum wage,

working excessive hours, debt bondage, and pressuring families into early marriage or nonconsensual sex for their daughters.

The government lacked the capacity to provide adequate protection for refugees. Refugees regularly reported abuse by members of political parties and gangs, often without official action in response. Additionally, LAF raids on settlements often resulted in harassment and destruction of personal property.

According to UNHCR, domestic courts often sentenced Iraqi and African refugees registered with UNHCR to one month's imprisonment and fines instead of deporting them for illegal entry. After serving their sentences, most refugees remained in detention unless they found employment sponsors and the DGS agreed to release them in coordination with UNHCR.

In-country Movement: The government maintained security checkpoints, primarily in military and other restricted areas. Hizballah also maintained checkpoints in certain Shia-majority areas. Government forces were usually unable to enforce the law in the predominantly Hizballah-controlled southern suburbs of Beirut and did not typically enter Palestinian refugee camps. According to UNRWA, Palestinian refugees registered with the Interior Ministry's Directorate of Political and Refugee Affairs could travel from one area of the country to another. The DGS, however, had to approve the transfer of registration of residence for refugees who resided in camps. UNRWA stated the DGS generally approved such transfers.

Prior to February authorities required Syrian refugees registered with UNHCR to pay a renewal fee of 300,000 Lebanese pounds (\$200) for each person 15 years old or above, every 12 months if the person wished to remain lawfully in the country as a refugee. Syrian refugees who arrived in the country after January 2015 must have entered with a Lebanese sponsor. Most refugees had difficulty affording the fees. In February the DGS announced it was waiving the fee for

residency renewal for refugees who registered with UNHCR prior to 2015. This ruling excluded unregistered refugees or those who renewed on the basis of Lebanese sponsorship, tourism, property ownership, or tenancy in 2015 or 2016. While some DGS offices began implementing this change, the actual number of beneficiaries remained limited due to the low capacity of DGS offices, as well as divergent or inconsistent practices at the local levels.

Due to the slow implementation of the residency fee waiver and, in many cases, failure to obtain or keep a Lebanese sponsor, the majority of Syrian refugees were unable to renew their legal documents, which significantly affected their freedom of movement owing to the possibility of regular arrests at checkpoints, particularly for adult men. While authorities released most detainees within a few days, some of the refugees met by foreign diplomats said authorities required them to pay fines before releasing them. In March 2016 the United Nations' joint household assessment of more than 100,000 refugee families indicated that 85 percent of refugee households had at least one member without legal status. Obtaining and maintaining legal residency was also a challenge for Iraqi refugees and refugees of other nationalities.

Since 2014 entry visas for PRS were granted at the border only to persons with either a verified embassy appointment in the country or a flight ticket and visa to a third country. Most of these individuals were issued a 24-hour transit visa. Additionally, limited numbers of PRS secured a visa for Lebanon by obtaining prior approval from the DGS, which required a sponsor in the country and could not be processed at border posts. UNRWA estimated that approximately 3 percent of the PRS in the country arrived in 2016.

Compared to the policy applied to Syrian nationals, authorities applied tighter conditions to PRS (notwithstanding restrictions on Syrians announced in January 2015). For example, Syrian nationals could, in principle, enter with humanitarian

visas, while this was not available to PRS. Some PRS consequently sought to enter the country through irregular border crossings, placing them at additional risk of exploitation and abuse and creating an obstacle to later regularizing their legal status.

On July 8, DGS issued a circular allowing the free, unlimited extension of PRS residency for six months, with no fees for delays. It applied to PRS who entered the country legally or who regularized their status before September 2016 and granted renewal of residency visas to those PRS who turned 15 years old in the country, allowing them to use documents that were easier to obtain in Lebanon rather than requiring children to return to Syria to obtain them. This latter point was not implemented for Syrian refugees. The circular, issued for residency renewal and not regularization, did not apply to PRS who entered the country through unofficial border crossings; PRS who entered the country through official border crossings, but who overstayed their temporary transit visa or failed to renew their visa; or PRS who were issued a departure order.

UNRWA estimated that as of September 2016 approximately 40 percent of PRS in the country did not hold valid legal residency.

On October 6, the condition of valid residency for birth and marriage registration for PRS was waived, expanding the application of a previous circular issued on September 12 applicable to Syrians.

INTERNALLY DISPLACED PERSONS (IDPS)

Fighting in 2007 destroyed the Nahr el-Bared Palestinian refugee camp, displacing approximately 30,000 residents, of whom approximately 27,000 were registered Palestine refugees. Many of the displaced resided in areas adjacent to the camp

or in other areas of the country where UNRWA services were available. As of October approximately 53 percent of displaced families returned to newly reconstructed apartments in Nahr el-Bared camp.

PROTECTION OF REFUGEES

Refoulement: The government consistently reaffirmed its commitment to the principle of nonrefoulement with respect to Syrians. According to UNHCR, authorities detained refugees and non-Syrian asylum seekers through June, of whom 148 remained in detention at the end of the year. Through August the DGS deported four persons despite UNHCR's interventions. UNHCR continued to intervene with authorities to request the release of persons of concern who were detained either beyond their sentence or for illegal entry or presence.

Access to Asylum: The law does not provide for the granting of asylum or refugee status. Nonetheless, the country hosted an estimated 1.5 million refugees.

Palestinian refugees were prohibited from accessing public health and education services or owning land; they were barred from employment in many fields, making refugees dependent upon UNRWA as the sole provider of education, health care, and social services. A 2010 labor law revision expanded employment rights and removed some restrictions on Palestinian refugees. This law was not fully implemented, however, and Palestinians remained barred from working in most skilled professions, including almost all those that require membership in a professional association.

As of June 30, there were more than one million Syrian refugees registered with UNHCR. Since the government instructed UNHCR to stop registering Syrian refugees in early 2015, this total did not include Syrian refugees who arrived in

Lebanon after January 2015. There were no formal refugee camps in the country for Syrians. Many Syrian refugees resided with host families or in unfinished substandard buildings, and approximately 18 percent lived in temporary tent settlements, usually with dirt floors, no plumbing, and with a portable heater for winter. According to a UN study, the refugees borrowed to cover even their most basic needs, including rent, food, and health care, putting nearly 90 percent of them in debt.

In 2015 new government regulations banned the entry of all Syrian refugees unless they qualified for undefined “humanitarian exceptions.” During the year the government accepted Syrians seeking asylum only if they qualified under the “humanitarian exceptions” that the Ministry of Social Affairs reviewed on a case-by-case basis. These exceptions included unaccompanied and separated children, persons with disabilities, medical cases, and resettlement cases under extreme humanitarian criteria.

UNRWA reported that the DGS issued some PRS departure orders despite their having paid the renewal fee. Legal status in Lebanon was critical for protection, as it allowed refugees to pass through checkpoints, including to and from camps, complete civil registration processes, and access and remain within the educational system.

In addition to more than 18,000 UNHCR-registered Iraqi refugees already residing in the country, there was a limited influx of Iraqi refugees who entered the country seeking to escape violence from the fight against ISIS. As of June 30, UNHCR also registered 3,530 refugees or asylum seekers from Sudan and other countries.

Freedom of Movement: Authorities imposed curfews in a number of municipalities across the country, allegedly to improve security of all communities. Some

international observers raised concerns that these measures may be discriminatory and excessive, since authorities usually enforced them on Syrian refugees only.

Evictions of Syrian refugees occurred in the aftermath of major security incidents and often targeted informal refugee settlements due to their proximity to LAF installations or vital supply routes. According to UNHCR, following the LAF order to evict settlements surrounding the Riyak Airbase in the Bekaa Valley in March, 557 Syrian refugee households (estimated 3,175 individuals) from this area reportedly relocated elsewhere in the country. In addition to the evictions in the Riyak area, Zahle municipality also issued eviction notices to Syrian refugee families starting in the first quarter and continuing in the second quarter of the year.

Employment: During the year authorities began requiring Syrian refugees who wished to obtain residency permits to pledge to abide by the country's laws, under which Syrians may work only in agriculture, construction, and cleaning.

The law allows a special account to provide end-of-service indemnities or severance pay to Palestinian refugees who retired or resigned. These benefits were available only to Palestinians working in the legal labor market. Palestinians did not benefit from national sickness and maternity funds or the family allowances fund. UNRWA continued to bear the cost of any medical, maternity, or family health-care expenses (excluding worker's compensation).

Access to Basic Services: The government did not consider local integration of any refugees a viable solution.

The law considers UNRWA-registered Palestinian refugees to be foreigners. UNRWA has the sole mandate to provide health, education, social services, and emergency assistance to registered Palestinian refugees residing in the country.

The amount of land allocated to the 12 official Palestinian refugee camps in the country had changed only marginally since 1948, despite a four-fold increase in the population. Consequently, most Palestinian refugees lived in overpopulated camps, some of which were heavily damaged during past conflicts. In accordance with agreements with the government, Palestine Liberation Organization (PLO) security committees provided security for refugees in the camps, with the exception of the Nahr el-Bared camp.

A comprehensive, multi-year plan to rebuild the Nahr el-Bared camp and surrounding communities in eight stages began in 2008 and was in process. Remaining reconstruction was not fully funded, however, and a shortfall of 159 million Lebanese pounds (\$106 million) remained at year's end. Of the 27,000 Palestinians originally displaced following the crisis, authorities expected approximately 21,000 to return.

A 2001 amendment to a 1969 decree barring persons explicitly excluded from resettling in the country from owning land and property was designed to exclude Palestinians from purchasing or inheriting property. Palestinians who owned and registered property prior to the 2001 law entering into force could bequeath it to their heirs, but individuals who were in the process of purchasing property in installments were unable to register the property.

Palestinian refugees residing in the country could not obtain citizenship and were not citizens of any other country. Palestinian refugee women married to Lebanese citizens were able to obtain citizenship after one year of marriage. According to the country's nationality law, the father transmits citizenship to children. Palestinian refugees, including children, had limited social and civil rights and no access to public health, education, or other social services. Children of Palestinian refugees faced discrimination in birth registration, and many had to leave school at an early age to earn an income.

Palestinian refugees who fled Syria to Lebanon since 2011 received limited basic support from UNRWA, including food aid, cash assistance, and winter assistance. Authorities permitted children of PRS to enroll in UNRWA schools and access UNRWA health clinics. UNRWA's verification exercise in 2016 found that there were approximately 32,500 PRS recorded with the agency, which reflected a decrease of more than 10,000 PRS in the country over the previous 12 months.

The Ministry of Education and Higher Education facilitated the enrollment of 195,000 non-Lebanese students, predominantly Syrian refugees, in public schools in the 2016-17 academic year, or 41 percent of the more than 488,000 registered Syrian refugee children between the ages of three and 18. Donor funding to UN agencies covered school-related expenses, such as school fees, books, and uniforms. Syrian refugees had access to many government and private health centers and local clinics for primary care services, and UN agencies and NGOs funded the majority of associated costs. Syrian refugees had access to a limited number of UNHCR-contracted hospitals for lifesaving and obstetric care.

Iraqi refugees had access to both the public and private education systems. UNHCR's education partners reported that authorities enrolled approximately 600 Iraqi children in formal public schools for the 2016-17 school year, and it provided grants to the children's families to help defray the costs associated with attending school. Iraqi refugees also had access to the primary health-care system. UNHCR, through NGOs, provided secondary health care.

STATELESS PERSONS

Citizenship is derived exclusively from the father, resulting in statelessness for children of a citizen mother and a noncitizen father when registration under the father's nationality is not possible. This discrimination in the nationality law

particularly affected Palestinians and, increasingly, Syrians from female-headed households. Additionally, some children born to Lebanese fathers did not have their births registered due to administrative obstacles or a lack of understanding of the regulations. The problem was compounded since nonnational status was a hereditary circumstance that stateless persons passed to their children. There were no official statistics on the size of the stateless population.

Approximately 3,000 Palestinian refugees were not registered with UNRWA or the government. Also known as undocumented Palestinians, most of these individuals moved to the country after the expulsion of the PLO from Jordan in 1971.

Palestinians faced restrictions on movement and lacked access to fundamental rights under the law. Undocumented Palestinians, who were not registered in other fields, were not necessarily eligible for the full range of services provided by UNRWA. Nonetheless, in most cases UNRWA provided primary health care, education, and vocational training services to undocumented Palestinians. The majority of undocumented Palestinians were men, many of them married to UNRWA-registered refugees or Lebanese citizen women, who could not transmit refugee status or citizenship to their husbands or children.

The Directorate of Political and Refugee Affairs continued to extend late registration to Palestinian refugee children under age 10. It was previously the directorate's policy to deny late birth registration to Palestinian refugee children who were above age two. Children between 10 and 20 years old were registered only after the following were completed: a DNA test, an investigation by the DGS, and the approval of the directorate.

Approximately 1,000 to 1,500 of an estimated 100,000 Kurds living in the country lacked citizenship, despite decades of family presence in the country. Most were descendants of migrants and refugees who left Turkey and Syria during World War I, but authorities denied them citizenship to preserve the country's sectarian

balance. The government issued a naturalization decree in 1994, but high costs and other obstacles prevented many individuals from acquiring official status. Some individuals who received official status had their citizenship revoked in 2011 due to a presidential decree. Others held an “ID under consideration” document without a date or place of birth.

Stateless persons lacked official identity documents that would permit them to travel abroad and could face difficulties traveling internally, including detention for not carrying identity documents. They had limited access to the regular employment market and no access to many professions. Additionally, they could not access public schools or public health-care facilities, register marriages or births, and own or inherit property.

Section 3.

Freedom to Participate in the Political Process

Although the law provides citizens the ability to choose their government in free and fair periodic elections conducted by secret ballot and based on universal and equal suffrage, lack of government control over parts of the country, defects in the electoral process, prolonged extension of parliament’s mandate, and corruption in public office restricted this ability.

Elections and Political Participation

Recent Elections: Observers concluded that the most recent parliamentary elections, held in 2009, were generally free and fair, with minor irregularities, such as instances of vote buying. The NGO Lebanese Transparency Association reported its monitors witnessed election fraud through cash donations on election

day in many electoral districts. Subsequently, authorities postponed legislative elections three times since the original legislative term ended in 2013; authorities scheduled the next parliamentary elections for May 2018.

Authorities held municipal elections in May 2016, and these constituted the first nationwide elections since the 2010 municipal elections. Although the elections were largely free and fair, observers present at some polling centers witnessed irregularities.

Political Parties and Political Participation: All major political parties and numerous smaller ones were almost exclusively based on confessional affiliation, and parliamentary seats were allotted on a sectarian basis.

Participation of Women and Minorities: No laws limit participation of women and/or members of minorities in the political process, and they did participate; however, there were significant cultural barriers to women's participation in politics. Prior to 2004 no woman held a cabinet position, and there were only four female ministers subsequently. During the year one woman served in the cabinet. Only four of 128 members of parliament were women, and all were close relatives of previous male members. Female leadership of political parties is limited, although three parties introduced voluntary quotas for their membership and one party (Lebanese Forces) appointed a woman as its secretary general in 2016, the first woman ever to hold the post in a major Lebanese political party. On September 19, parliament approved a law that allows women to run in municipal elections in their native towns instead of the municipality of their spouses.

Minorities participated in politics. Regardless of the number of its adherents, every government-recognized religion, except Coptic Christianity, Ismaili Islam, and Judaism, was allocated at least one seat in parliament. Three parliamentarians representing minorities (one Syriac Orthodox Christian and two Alawites) were

elected in the 2009 elections. None of the minority parliamentarians were women. These groups also held high positions in government and the LAF. Since refugees are not citizens, they have no political rights. An estimated 17 Palestinian factions operated in the country, generally organized around prominent individuals. Most Palestinians lived in refugee camps that one or more factions controlled. Palestinian refugee leaders were not elected, but there were popular committees that met regularly with UNRWA and visitors.

Section 4.

Corruption and Lack of Transparency in Government

Although the law provides criminal penalties for official corruption, the government did not implement the law effectively, and officials often reportedly engaged in corrupt practices with impunity and on a wide scale. Government security officials, agencies, and police were subjected to laws against bribery and extortion. The lack of strong enforcement limited the law's effectiveness.

Corruption: Observers widely considered government control of corruption to be poor. There was limited parliamentary or auditing authority oversight of revenue collection and expenditures.

Types of corruption generally encountered included systemic patronage; judicial failures, especially in investigations of politically motivated killings; electoral fraud facilitated by the absence of preprinted ballots; and bribery.

Financial Disclosure: The law requires the president of the republic, the president of the Chamber of Deputies, the president of the Council of Ministers, as well as ministers, members of parliament, and judges to disclose their financial assets in

a sealed envelope deposited at the Constitutional Council, but the information is not made available to the public. They must also do the same when they leave office. Heads of municipalities disclose their financial assets in a sealed envelope at the Ministry of Interior, and civil servants deposit their sealed envelopes at the Civil Servants Council, but the information is also not available to the public. If a case is brought to the State Council for noncompliance, the State Council will take judiciary administrative sanctions consisting of terminating the tenure of the incumbent.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were responsive in some instances to these groups' views; however, there was limited accountability for human rights violations.

Government Human Rights Bodies: Parliament's Committee on Human Rights struggled to advance legislative proposals to make legal changes to guide ministries in protecting specific human rights or, for example, improving prison conditions. The State Ministry for Human Rights supported human rights legislation and engaged with NGOs and international organizations, but it was limited by lack of an official budget or staff. The Ministry of Interior has a human rights unit to enhance and raise awareness about human right issues within the ISF, train

police officers on human right standards, and monitor and improve prison conditions. The ministry staffed the department with four officers, including the department's head, and 15 noncommissioned officers. The department and its leadership maintained high standards of professionalism.

The ISF administers a complaint mechanism allowing citizens to track complaints and receive notification of investigation results. Citizens may file formal complaints against any ISF officer in person at a police station, through a lawyer, by mail, or online through the ISF website. At the time a complaint is filed, the filer receives a tracking number that may be used to check the status of the complaint throughout the investigation. The complaint mechanism provides the ISF the ability to notify those filing complaints of the results of its investigation.

The LAF has a human rights unit that engaged in human rights training through various international organizations. The unit worked to assure that the LAF operated in accordance with major international human rights conventions and coordinated human rights training in LAF training academies. The LAF human rights unit also worked with international NGOs to coordinate human rights training and policies, and it requested the creation of legal advisor positions to embed with LAF combat units and advise commanders on human rights and international law during operations. The unit also has responsibility for coordinating the LAF's efforts to combat trafficking in persons.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law criminalizes rape and the use of threats or violence to claim a “marital right to intercourse.” While the government effectively enforced the law, its interpretation by religious courts precluded full implementation of civil law in all provinces. The minimum prison sentence for a person convicted of rape is five years, or seven years for raping a minor. On August 16, parliament repealed the article of the penal code that freed rapists from prosecution and nullified their convictions if they married their victims.

The law criminalizes domestic violence, but it does not specifically provide protection for women. Despite a law that sets a maximum sentence of 10 years in prison for battery, some religious courts may legally require a battered wife to return to her home despite physical abuse. Foreign domestic workers, usually women, often suffered from mistreatment, abuse, and in some cases rape or conditions akin to slavery. Some police, especially in rural areas, treated domestic violence as a social, rather than criminal, matter.

The government provided legal assistance to domestic violence victims who could not afford it, and police response to complaints submitted by battered or abused women improved.

The Women’s Affairs Division in the Ministry of Social Affairs and several NGOs undertook some projects to address sexual or gender-based violence, such as providing counseling and shelter for victims and training ISF personnel to combat violence in prisons.

Sexual Harassment: The law prohibits sexual harassment, but authorities did not enforce the law effectively, and it remained a widespread problem. According to the UN Population Fund (UNFPA), the labor law does not explicitly prohibit sexual harassment in the workplace; it merely gives a male or female employee the right to resign without prior notice from his or her position in the event that an indecent offense is committed towards the employee or a family member by the employer or his or her representative, without any legal consequences for the perpetrator.

Coercion in Population Control: There were no reports of coerced abortion, involuntary sterilization, or other coercive population control methods. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: Women suffered discrimination under the law and in practice. Social pressure against women pursuing some careers was strong in some parts of society. Men sometimes exercised considerable control over female relatives, restricting their activities outside the home or their contact with friends and relatives. In matters of child custody, inheritance, and divorce, personal status laws provide unequal treatment across the various confessional court systems but generally discriminate against women. For example, Sunni civil courts applied an inheritance law that provides a son twice the inheritance of a daughter. Religious law on child custody matters favors the father in most instances. Nationality law also discriminates against women, who may not confer citizenship to their spouses and children, although widows may confer citizenship to their minor children. By law women may own property, but they often ceded control of it to male relatives due to cultural reasons and family pressure.

The law does not distinguish between women and men in employment and provides for equal pay for men and women. On wage equality for similar work, the report indicated a considerable difference between wages for women and men in the workplace.

Children

Birth Registration: Citizenship is derived exclusively from the father, which may result in statelessness for children of a citizen mother and noncitizen father who may not transmit his own citizenship (see section 2.d.). If a child's birth is not registered within the first year, the process for legitimizing the birth is long and costly, often deterring families from registration. Authorities did not permit refugees without valid residency papers to complete the registration of their child's birth, placing them at increased risk of statelessness.

Some refugee children and the children of foreign domestic workers also faced obstacles to equal treatment under the law. NGOs reported discrimination against them, although some could attend public school.

Education: Education for citizens is free and compulsory through the primary phase. Noncitizen children, including those born of noncitizen fathers and citizen mothers and refugees, lack this right. Certain public schools had quotas for noncitizen children, but there were no special provisions for children of female citizens, and spaces remained subject to availability. Boys and girls had nearly equal rates of primary education, with women outnumbering men in secondary and tertiary education. Authorities permitted Syrian refugee children to enroll in public schools.

Child Abuse: The child protection NGO Himaya reported assisting a total of 546 cases of psychological, physical, and sexual abuse of children during the year. The Ministry of Social Affairs had a hotline to report cases of child abuse.

Syrian refugee children were vulnerable to child labor and exploitation.

Early and Forced Marriage: There is no legal minimum age for marriage, and the government does not perform civil marriages. Instead, religious courts set the marriage age based on confessionally determined personal status law, and minimum ages for marriage differ accordingly.

Sexual Exploitation of Children: The penal code prohibits and punishes commercial sexual exploitation, child pornography, and forced prostitution. The minimum age for consensual sex is 18, and statutory rape penalties include hard labor for a minimum of five years and a minimum of seven years' imprisonment if the victim is younger than 15 years old. The government generally enforced the law.

As of August 31, the ISF investigated 15 cases of human trafficking involving 21 victims of sexual exploitation and referred them to the judiciary. The Ministry of Justice reported investigating 80 suspected traffickers, of whom the government charged and prosecuted 61 under the antitrafficking law. Authorities found 30 of these offenders guilty of trafficking and referred them to the courts for trial. The cases involved forced labor, forced street begging, and sex trafficking.

Displaced Children: The Ministry of Education and Higher Education opened 195,000 places in the public school system to non-Lebanese children in the 2016-17 academic year. NGOs often used informal education to assist students not performing at grade level, but the ministry opposed nonformal education unless it was linked to enrollment in public schools, which limited access to education for refugees and prompted many NGOs to terminate programs.

Some refugee children lived and worked on the street. Given the poor economic environment, limited freedom of movement, and little opportunity for livelihoods for adults, many Syrian refugee families relied on children to earn money for the family. Refugee children were at greater risk of exploitation and child labor, since they had greater freedom of movement compared to their parents, who often lacked residency permits.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

At year's end there were approximately 100 Jews living in the country and 6,000 registered Jewish voters who lived abroad but had the right to vote in parliamentary elections.

The Jewish Community Council reported that acts of vandalism against the cemetery in Beirut continued during the year. Vandals also threw construction rubble and trash into the cemetery. The council reported the abuse to the security forces, but authorities took no action. Rooms, shops, and a gas station were built on the land of the Jewish cemetery in Tripoli, and a lawsuit was filed in 2011. While the suit was still pending, authorities took no action by year's end.

The national school curriculum materials did not contain materials on the Holocaust.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at

www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

Although prohibited by law, discrimination against persons with disabilities continued. Employment law defines a “disability” as a physical, sight, hearing, or mental disability. The law stipulates that persons with disabilities fill at least 3 percent of all government and private-sector positions, provided such persons fulfill the qualifications for the position. There was, however, no evidence indicating the government enforced the law. Employers are legally exempt from penalties if they provide evidence no otherwise qualified person with disabilities applied for employment within three months of advertisement. The law mandates access to buildings by persons with disabilities, but the government failed to amend building codes. The law does not mandate access to information nor accommodations for communication for persons with disabilities.

The Ministry of Social Affairs and the National Council of Disabled are responsible for protecting the rights of persons with disabilities. According to the president of the Arab Organization of Disabled People, little progress had occurred since parliament passed the law on disabilities in 2000.

Depending on the type and nature of the disability, children with a disability may attend mainstream school. Due to a lack of awareness or knowledge, school staff often did not identify a specific disability in children and could not adequately advise parents. In such cases children often repeated classes or dropped out of school.

The Ministry of Education and Higher Education stipulates that for new school building construction “schools should include all necessary facilities in order to receive the physically challenged.” Nonetheless, the public school system was ill equipped to accommodate students with disabilities.

In the May 2016 municipal elections, access for persons with disabilities and older persons was a significant issue. ISF officers helped, and at times carried, some voters with disabilities into the polling stations. Some voters also required assistance to reach the elevated polling booths.

National/Racial/Ethnic Minorities

Lebanese of African descent attributed discrimination to the color of their skin and claimed harassment by police, who periodically demanded to see their papers. Foreign Arab, African, and Asian students, professionals, and tourists reported being denied access to bars, clubs, restaurants, and private beaches.

Syrian workers, usually employed as manual laborers and construction workers, continued to suffer discrimination, as they did following the 2005 withdrawal of Syrian occupation forces from the country. Many municipalities enforced a curfew on Syrians’ movements in their neighborhoods in an effort to control security.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Official and societal discrimination against LGBTI persons persisted. There is no all-encompassing antidiscrimination law to protect LGBTI persons. “Unnatural sexual intercourse,” is prohibited. The law is occasionally enforced. Official and societal discrimination against LGBTI persons continued.

The government did not collect information on official or private discrimination in employment, occupation, housing, statelessness, or lack of access to education or health care based on sexual orientation or gender identity, and individuals who faced problems were reluctant to report incidents due to fear of additional discrimination. There were no government efforts to address potential discrimination.

Observers received reports from LGBTI refugees of physical abuse by local gangs, which the victims did not report to the ISF. Observers referred victims to UNHCR-sponsored protective services.

Most reports of abuse came from transgender women. An AFE and Marsa project highlighted employment discrimination faced by transgender women due to the inconsistency between official documentation and gender self-presentation.

On May 17, despite threats from Islamist groups, Beirut held the country's first Pride Week event, which included conferences, workshops, and social gatherings.

HIV and AIDS Social Stigma

HIV/AIDS is stigmatized due to sensitivities about extramarital relations. Few who contracted the disease did so in the course of homosexual relations, which are also taboo. The main challenge facing AIDS patients, in addition to stigma and discrimination, was that many were unable to pay for regular follow-up tests that the Ministry of Public Health does not cover. The law requires the government to offer treatment to all residents who are AIDS patients rather than deporting foreigners who carry the disease.

Other Societal Violence or Discrimination

As in previous years, there were reports of incidents of societal violence and interreligious strife. Observers reported Shia militias, most notably Hizballah, harassed unfamiliar refugees entering territories under their control. Political leaders across the country condemned the action of extremist groups.

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

The law provides for the right of private-sector workers to form and join trade unions, bargain collectively, and strike but places a number of restrictions on these rights. The Ministry of Labor must approve the formation of unions, and it controlled the conduct of all trade union elections, including election dates, procedures, and ratification of results. The law permits the administrative dissolution of trade unions and bars trade unions from political activity. Unions have the right to strike after providing advance notice to and receiving approval from the Ministry of Interior. Organizers of a strike (at least three of whom must be identified by name) must notify the ministry of the number of participants in advance and the intended location of the strike, and 5 percent of a union's members must take responsibility for maintaining order during the strike.

There are significant restrictions on the right to strike. The labor law excludes public-sector employees, domestic workers, and agricultural workers. Therefore, they have neither the right to strike nor to join and establish unions. The law prohibits public-sector employees from any kind of union activity, including striking, organizing collective petitions, or joining professional organizations. Despite this

prohibition public-sector employees succeeded in forming leagues of public school teachers and civil servants that created the Union of Coordination Committees (UCC), which along with private school teachers, demanded better pay and working conditions.

The law protects the right of workers to bargain collectively, but a minimum of 60 percent of workers must agree on the goals beforehand. Collective bargaining agreements must be ratified by two-thirds of union members at a general assembly. Collective agreements for the Port of Beirut and the American University of Beirut Medical Center employees were still in force, while the port workers union was preparing to negotiate a new agreement.

The law prohibits antiunion discrimination. Under the law, when employers misuse or abuse their right to terminate a union member's contract, including for union activity, the worker is entitled to compensation and legal indemnity and may institute proceedings before a conciliation board. The board adjudicates the case, after which an employer may be compelled to reinstate the worker, although this protection was available only to the elected members of a union's board.

Anecdotal evidence showed widespread antiunion discrimination, although this issue did not receive significant media coverage. The most flagrant abuses occurred in banking, private schools, retail businesses, daily and occasional workers, and the civil service. The government and ruling political parties interfered in the elections of the teachers and civil servants leagues, succeeding in removing an active UCC leadership that aimed to transform itself into a genuine trade union structure. The founding members of the domestic workers' union were under scrutiny within the country. For example, the DGS detained Sujana Rana and deported her in December 2016. Roja Limbu was arrested in December 2016 and deported on January 29.

By law foreigners with legal resident status may join trade unions. The migrant law permits migrant workers to join existing unions (regardless of nationality and reciprocity agreements) but denies them the right to form their own unions. They do not enjoy full membership as they may neither vote in trade union elections nor run for union office. Certain sectors of migrant workers, such as migrant domestic workers, challenged the binding laws supported by some unions by forming their own autonomous structures that acted as unions, although the Ministry of Labor had not approved them.

Palestinian refugees generally may organize their own unions on an individual basis. Because of restrictions on their right to work, few refugees participated actively in trade unions. While some unions required citizenship, others were open to foreign nationals whose home countries had reciprocity agreements with Lebanon.

The government's enforcement of applicable laws was weak, including with regard to prohibitions on antiunion discrimination.

Freedom of association and the right to collective bargaining were not always respected. The government and other political actors interfered with the functioning of worker organizations, particularly the main federation, the General Confederation of Lebanese Workers (CGTL). The CGTL is the only national confederation recognized by the government, although several unions boycotted and unofficially or officially broke from the CGTL and no longer recognized it as an independent and nonpartisan representative of workers. The UCC largely overshadowed the CGTL, while the National Federation of Workers and Employees in Lebanon emerged as another alternative to represent the independent trade union movement. Since 2012 the UCC played a major role in pushing the government to pass a promised revised salary scale. Although the UCC strikes and demonstrations prompted the government to send the revised salary scale

proposal to parliament, the proposal languished in parliament for almost five years. On July 18, parliament passed the salary scale law for public-sector employees.

Antiunion discrimination and other instances of employer interference in union functions occurred. Some employers fired workers in the process of forming a union before the union could be formally established and published in the official gazette. There was no progress on enacting a draft labor code, under discussion since 2008.

There was widespread anecdotal evidence of arbitrary dismissals of Lebanese, and their replacement by non-Lebanese, across economic and productive sectors. This was mainly in the form of Syrian refugees allegedly replacing Lebanese in some sectors. There were no official statistics to quantify the scale of these dismissals.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The law prohibits forced or compulsory labor, but the government did not effectively enforce the law, although the government made some efforts to prevent or eliminate it. The law does not criminally prohibit debt bondage.

Children, foreign workers employed as domestic workers, and other foreign workers sometimes worked under forced labor conditions. The law provides protection for domestic workers against forced labor, but domestic work is excluded from protections under the labor law and vulnerable to exploitation. In violation of the law, employment agencies and employers routinely withheld foreign workers' passports, especially in the case of domestic workers, sometimes for years. According to NGOs assisting migrant workers, some employers withheld salaries for the duration of the contract, which was usually two years.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

Child labor occurred, including in its worst forms. While up-to-date statistics on child labor were unavailable, anecdotal evidence suggested the number of child workers rose during the year and that more children worked in the informal sector, including commercial sexual exploitation, as UNHCR noted. UNHCR and UNICEF's 2016 vulnerability survey of Syrian refugees in Lebanon found 4 percent of households said they relied on child labor as a coping strategy.

Child labor, including among refugee children, was predominantly concentrated in the informal sector, including in small family enterprises, mechanical workshops, carpentry, construction, manufacturing, industrial sites, welding, agriculture (including in the production of tobacco), and fisheries. Anecdotal evidence also suggested child labor was prevalent in Palestinian refugee camps and among Iraqi refugees and Romani communities, and most prevalent in Syrian refugee communities. Some children were involved in the worst forms of child labor, such as street work including begging, selling goods, polishing shoes, and washing car windows, as well as forced labor. The International Labor Organization (ILO) noted abuses involving the use, recruitment, and exploitation of children in political protests and militant activities in the northern region of the country and some areas of Beirut.

The Ministry of Labor is responsible for enforcing child labor requirements through its Child Labor Unit. Additionally, the law charges the Ministry of Justice, the ISF, and the Higher Council for Childhood (HCC) with enforcing laws related to child trafficking, including commercial sexual exploitation of children and the use of

children in illicit activities. The HCC is also responsible for referring children held in protective custody to appropriate NGOs to find safe living arrangements. The Ministry of Labor employed approximately 45 labor inspectors, of whom approximately 25 to 30 focused on child labor.

Overall, the government did not enforce child labor laws effectively, in part due to inadequate resources. The penal code calls for penalties for those who violate laws on the worst forms of child labor ranging from a fine of 250,500 Lebanese pounds (\$167) and one to three months' imprisonment up to the closure of the offending establishment. Advocacy groups did not consider these punishments sufficient deterrents.

The minimum age for employment is 14, and the law prescribes the occupations that are legal for juveniles, defined as children between ages 14 and 18. The law requires juveniles to undergo a medical exam by a doctor certified by the Ministry of Public Health to assure they are physically fit for the type of work they are asked to perform. The law prohibits employment of juveniles for more than seven hours per day or from working between 7 p.m. and 7 a.m., and it requires one hour of rest for work lasting more than four hours. The law, updated by a decree on the Worst Forms of Child Labor, prohibits specific types of labor for juveniles, including informal "street labor." It also lists types of labor that, by their nature or the circumstances in which they are carried out, are likely to harm the health, safety, or morals of children under 16, as well as types of labor that are allowed for children over 16, provided they are offered full protection and adequate training.

The government made efforts to prevent child labor and remove children from such labor during the year. The Ministry of Labor's Child Labor Unit acts as the government's focal point for child labor issues, and it oversees and implements the ministry's national strategy to tackle child labor. The National Steering

Committee on Child Labor is the main interministerial body coordinating on child labor across the government. In collaboration with the ILO, the ministry established three new coordinating committees against child labor in 2016, in Beirut's southern suburbs, Mount Lebanon, and in the Bekaa region.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

The law provides for equality among all citizens and prohibits discrimination based on race, gender, disability, language, or social status. The law does not specifically provide for protection against discrimination based on sexual orientation, gender identity, HIV status, or other communicable diseases.

Although the government generally respected these provisions, they were not enforced in some areas, especially in economic matters, and aspects of the law and traditional beliefs discriminated against women. Discrimination in employment and occupation occurred with respect to women, persons with disabilities, foreign domestic workers, and LGBTI and HIV-positive persons (see section 6).

The law does not distinguish between women and men in employment, and it provides for equal pay for men and women. According to the 2016 World Economic Forum's Global Gender Gap Report, women made up 25 percent of the labor force, compared to 75 percent of men. On wage equality for similar work, the report also indicates a considerable difference between wages for women and men in the workplace.

Although prohibited by law, discrimination against persons with disabilities continued. Employment law defines a "disability" as a physical, sight, hearing, or

mental disability. The law stipulates that persons with disabilities fill at least 3 percent of all government and private-sector positions, provided such persons fulfill the qualifications for the position; however, no evidence indicated that the government enforced the law.

Migrant workers and domestic workers faced employment hurdles that amounted to discrimination (see section 7.e.).

E. ACCEPTABLE CONDITIONS OF WORK

The legal minimum wage was last raised in 2012. There was no official minimum wage for domestic workers. Official contracts stipulated a wage ranging from 225,000 to 450,000 Lebanese pounds (\$150 to \$300) per month for domestic workers, depending on the nationality of the worker. A unified standard contract, which was registered with the DGS for the worker to obtain residency, granted migrant domestic workers some labor protections. The standard contract covered uniform terms and conditions of employment, but the section covering wages was completed individually.

The law prescribes a standard 48-hour workweek with a weekly rest period that must not be less than 36 consecutive hours. The law stipulates 48 hours work as the maximum per week in most corporations except agricultural enterprises. A 12-hour day is permitted under certain conditions, including a stipulation that overtime pay is 50 percent higher than pay for normal hours. The law does not set limits on compulsory overtime. The law includes specific occupational health and safety regulations and requires employers to take adequate precautions for employee safety.

Domestic workers are not covered under the labor law or other laws related to acceptable conditions of work. Such laws also do not apply to those involved in

work within the context of a family, day laborers, temporary workers in the public sector, or workers in the agricultural sector.

The Ministry of Labor is responsible for enforcing regulations related to acceptable conditions of work but did so unevenly. The ministry employed approximately 90 enforcement officials made up of both inspectors and assistant inspectors, as well as administrators and technicians, who handle all inspections of potential labor violations. The number of inspectors, available resources, and legal provisions were not sufficient to deter violations, nor was there political will for proper inspections in other cases. Interference with inspectors affected the quality of inspections and issuance of fines for violators was common. The law stipulates that workers may remove themselves from situations that endanger their health or safety without jeopardy to their employment, although government officials did not protect employees who exercised this right.

Workers in the industrial sector worked an average of 35 hours per week, while workers in other sectors worked an average of 32 hours per week. Some private-sector employers failed to provide employees with family and transportation allowances as stipulated under the law and did not register them with the National Social Security Fund (NSSF).

Some companies did not respect legal provisions governing occupational health and safety in specific sectors, such as the construction industry. Workers could report violations to the CGTL, Ministry of Labor, NSSF, or through their respective unions. In most cases they preferred to remain silent due to fear of dismissal.

Violations of wage, overtime, and occupational health and safety standards were most common in the construction industry and among migrant workers, particularly with foreign domestic workers.

Foreign migrant workers arrived in the country through local recruitment agencies and source-country recruitment agencies. Although the law requires recruitment agencies to have a license from the Ministry of Labor, the government did not adequately monitor their activities. A sponsorship system tied foreign workers' legal residency to a specific employer, making it difficult for foreign workers to change employers. If employment was terminated, a worker lost residency. This circumstance made many foreign migrant workers reluctant to file complaints to avoid losing their legal status.

Some employers mistreated, abused, and raped foreign domestic workers, who were mostly of Asian and African origin. Domestic workers often worked long hours and, in many cases, did not receive vacations or holidays. Victims of abuse may file civil suits or seek other legal action, often with the assistance of NGOs, but most victims, counseled by their embassies or consulates, settled for an administrative solution that usually included monetary compensation and repatriation.

Authorities did not prosecute perpetrators of abuses against foreign domestic workers for a number of reasons, including the victims' refusal to press charges and lack of evidence. Authorities settled an unknown number of other cases of nonpayment of wages through negotiation. According to source-country embassies and consulates, many workers did not report violations of their labor contracts until after they returned to their home countries, since they preferred not to stay in the country for a lengthy judicial process.

While licensed businesses and factories strove to meet international standards for working conditions with respect to occupational safety and health, conditions in informal factories and businesses were poorly regulated and often did not meet these standards. The Ministry of Industry is responsible for enforcing regulations to improve safety in the workplace. The regulations require industries to have three

types of insurance (fire, third-party, and workers' policies) and to implement proper safety measures. The ministry has the authority to revoke a company's license if its inspectors find a company noncompliant, but there was no evidence this occurred.

The law requires businesses to adhere to safety standards, but the law was poorly enforced and did not explicitly permit workers to remove themselves from dangerous conditions without jeopardy to their continued employment. Workers may ask to change their job or be removed from an unsafe job without being affected, as per the labor code. The government, however, only weakly implemented the law due to lack of governance, the weak role of the trade union movement, corruption, and lack of trade union rights.